NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH
COURT NO.1

ATTENDANCE CUM ORDER SHEET OF THE HEARING OF NATIONAL COMPANY LAW TRIBUNAL, BENGALURU BENCH, BENGALURU, HELD ON 25.09.2017.

PRESENT: 1. Hon'ble Member(J) **Shri Ratakonda Murali**
2. Hon'ble Member(T) **Dr. Ashok Kumar Mishra**

C.P. No. or C.A. No.	T.P. No.	Purpose	Section	Name of the Parties M/s. / Mr.
CA(CAA) No.54/BB/ 2017	-	For Hearing	230/232	Gokaldas Exports Ltd.

SL. NO.	NAME (IN CAPITAL) & PHONE NUMBER	REPRESENTATION TO WHOM	SIGNATURE
	DEVIKA SATHYANARAYANA 9620698482.	~~Pet~~ Petitioner (Authorised Representative)	

Orders passed vide separate orders.

Member (J)

Member (T)

IN THE NATIONAL COMPANY LAW TRIBUNAL
BENGALURU BENCH

CA(CAA)NO.54/BB/17
Under Section 230 to 232 of Companies Act, 2013

IN THE MATTER OF
DEEJAY TRADING PRIVATE LIMITED
GLAMOURWEAR APPARELS PRIVATE LIMITED
MADHIN TRADING PRIVATE LIMITED
MAGENTA TRADING PRIVATE LIMITED
RAFTER TRADING PRIVATE LIMITED
RAJDIN APPARELS PRIVATE LIMITED
REFLEXION TRADING PRIVATE LIMITED
RISHIKESH APPARELS PRIVATE LIMITED
SEVEN HILLS CLOTHING PRIVATE LIMITED
WITH
GOKALDAS EXPORTS LIMITED
Order delivered on: 25th September, 2017

Coram: Hon'ble Shri Ratakonda Murali, Member (Judicial)
Hon'ble Shri Ashok Kumar Mishra, Member (Technical)

For the Petitioner (s) 1. V.Sreedharan, Practising Company Secretary

Per: Hon'ble Shri Ratakonda Murali, Member (Judicial)

Heard on: 09.08.2017, 5.09.2017, 19.09.2017

ORDER

This is a Joint Application filed by the applicant companies namely Deejay Trading Private Limited (Applicant Company No.1/Transferor Company No.1), Glamourwear Apparels Private Limited (Applicant Company No.2/Transferor Company No.2), Madhin Trading Private Limited (Applicant Company No.3/Transferor Company No.3), Magenta Trading Private Limited (Applicant company No.4/Transferor Company No.4), Rafter Trading Private Limited (Applicant Company No.5/Transferor Company No.5), Rajdin Apparels Private Limited (Applicant Company No.6/Transferor Company No.6), Reflexion Trading Private Limited (Applicant Company No.7/Transferor company No.7), Rishikesh Apparels Private Limited (Applicant Company No.8/Transferor Company No.8), Seven Hills Clothing Private Limited (Applicant Company No.9/Transferor company No.9) and Gokaldas Exports Limited (Applicant Company No.10/Transferee Company) under Section 230 to 232 of Companies Act, 2013 read with Rule 3 Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, praying to order to dispense with convening of meeting of

shareholders and creditors of the Applicant Company No 1, 2,3,4,5,6,7,8,9 and for dispensing with convening of meeting of unsecured creditors of Applicant Company No.10 and convening the meeting of Shareholders and Secured Creditors of Applicant Company No.10 for considering the scheme of Amalgamation, where under Deejay Trading Private Limited (Applicant Company No.1/Transferor Company No.1), Glamourwear Apparels Private Limited (Applicant Company No.2/Transferor Company No.2), Madhin Trading Private Limited (Applicant Company No.3/Transferor Company No.3), Magenta Trading Private Limited (Applicant company No.4/Transferor Company No.4), Rafter Trading Private Limited (Applicant Company No.5/Transferor Company No.5), Rajdin Apparels Private Limited (Applicant Company No.6/Transferor Company No.6), Reflexion Trading Private Limited (Applicant Company No.7/Transferor company No.7), Rishikesh Apparels Private Limited (Applicant Company No.8/Transferor Company No.8), Seven Hills Clothing Private Limited (Applicant Company No.9/Transferor company No.9) are proposed to be merged with Gokaldas Exports Limited (Applicant Company No.10/Transferee Company). The Scheme of Amalgamation shown as **Annexure-A**.

The averments made in the Joint Company Application are briefly described hereunder:-

The Applicants seek an order to dispense with convening of meeting of shareholders and creditors of the Applicant Companies No1,2,3,4,5,6,7,8,9, to dispense with convening of meeting of unsecured creditors of Applicant Company No.10 and convening the meeting of shareholders and secured creditors of Applicant Company No.10 for approving the scheme of Amalgamation of Deejay Trading Private Limited (Applicant Company No.1/Transferor Company No.1), Glamourwear Apparels Private Limited (Applicant Company No.2/Transferor Company No.2), Madhin Trading Private Limited (Applicant Company No.3/Transferor Company No.3), Magenta Trading Private Limited (Applicant company No.4/Transferor Company No.4), Rafter Trading Private Limited (Applicant Company No.5/Transferor Company No.5), Rajdin Apparels Private Limited (Applicant Company No.6/Transferor Company No.6), Reflexion Trading Private Limited (Applicant Company No.7/Transferor company No.7), Rishikesh Apparels Private Limited (Applicant Company No.8/Transferor Company No.8), Seven Hills Clothing Private Limited (Applicant Company No.9/Transferor company No.9) with Gokaldas Exports Limited (Applicant Company No.10/Transferee Company) in terms of Scheme of Amalgamation shown as **Annexure-A**.

Joint Application was filed on behalf of the applicant companies stating that the Applicant Company No.1/ Transferor Company No.1 was incorporated on 21st February, 2003 under the name and style of "Deejay Trading Private Limited". The Registered office of the Transferor Company No.1 is situated at 16/2, Residency Road, Bangalore-560025.

The main objects of the Transferor Company No.1 is to carry on the business of all or any of the business as manufacturers, traders, exporter, stockists, distributors, consignors, consignees, agents, factors or and/ or otherwise deal in yarn of all kinds and description made out of any fibrous material(s) hosieries, manmade fibres, viscose and viscose blended fibre, readymade garments etc., The copy of Memorandum and Articles of Association of the Transferor Company No.1 is shown as **Annexure-I1.**

The latest authorised share capital of the Applicant Company No.1/Transferor Company No.1 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The issued, subscribed and paid-up capital of the Transferor Company No.1 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The Audited balance sheet as on 31st March, 2016 is shown as **Annexure-J1**.

It is further stated that Applicant Company No.2/ Transferor Company No.2 was incorporated on 17th June, 2004 under the name and style of Glamourwear Apparels Private Limited. The Registered office of the Transferor Company No.2 is situated at 16/2, Residency Road, Bangalore-560025.

The main objects of the Transferor Company No.2 is to carry on the business of all or any of the business as manufacturers, traders, exporter, stockists, distributors, consignors, consignees, agents, factors or and/ or otherwise deal in yarn of all kinds and description made out of any fibrous material(s) hosieries, manmade fibres, viscose and viscose blended fibre, readymade garments etc., The copy of Memorandum and Articles of Association of the Transferor Company No.2 shown as **Annexure-I2.**

The latest authorised share capital of the Applicant Company No.2/Transferor Company No.2 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The issued, subscribed and paid-up capital of the Transferor Company No.2 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The Audited balance sheet as on 31st March, 2016 is shown as **Annexure-J2**.

It is further stated that Applicant Company No.3/ Transferor Company No.3 was incorporated on 27th February, 2003 under the name and style of Madhin Trading Private Limited. The Registered office of the Transferor Company No.3 is situated at 16/2, Residency Road, Bangalore-560025.

The main objects of the Transferor Company No.3 is to carry on the business of all or any of the business as manufacturers, traders, exporter, stockists, distributors, consignors, consignees, agents, factors or and/ or otherwise deal in yarn of all kinds and description made out of any fibrous material(s) hosieries, manmade fibres, viscose and viscose blended fibre, readymade garments etc., The copy of Memorandum and Articles of Association of the Transferor Company No.3 shown as **Annexure-I3.**

The latest authorised share capital of the Applicant Company No.3/Transferor Company No.3 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The issued, subscribed and paid-up capital of the Transferor Company No.3 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The Audited balance sheet as on 31st March, 2016 is shown as **Annexure-J3**.

It is further stated that Applicant Company No.4/ Transferor Company No.4 was incorporated on 27th February, 2003 under the name and style of Magenta Trading Private Limited. The Registered office of the Transferor Company No.4 is situated at 16/2, Residency Road, Bangalore-560025.

The main objects of the Transferor Company No.4 is to carry on the business of all or any of the business as manufacturers, traders, exporter, stockists, distributors, consignors, consignees, agents, factors or and/ or otherwise deal in yarn of all kinds and description made out of any fibrous material(s) hosieries, manmade fibres, viscose and viscose blended fibre, readymade garments etc., The copy of Memorandum and Articles of Association of the Transferor Company No.4 shown as **Annexure-I4.**

The latest authorised share capital of the Applicant Company No.4/Transferor Company No.4 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The issued, subscribed and paid-up capital of the Transferor Company No.4 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The Audited balance sheet as on 31st March, 2016 is shown as **Annexure-J4**.

It is further stated that Applicant Company No.5/ Transferor Company No.5 was incorporated on 7th March, 2003 under the name and style of Rafter Trading Private Limited. The Registered office of the Transferor Company No.5 is situated at 16/2, Residency Road, Bangalore-560025.

The main objects of the Transferor Company No.5 is to carry on the business of all or any of the business as manufacturers, traders, exporter, stockists, distributors, consignors, consignees, agents, factors or and/ or otherwise deal in yarn of all kinds and description made out of any fibrous material(s) hosieries, manmade fibres, viscose and viscose blended fibre, readymade garments etc., The copy of Memorandum and Articles of Association of the Transferor Company No.5 shown as **Annexure-I5.**

The latest authorised share capital of the Applicant Company No.5/Transferor Company No.5 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The issued, subscribed and paid-up capital of the Transferor Company No.5 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The Audited balance sheet as on 31st March, 2016 is shown as **Annexure-J5**.

It is further stated that Applicant Company No.6/ Transferor Company No.6 was incorporated on 7th May, 2004 under the name and style of Rajdin Apparels Private Limited. The Registered office of the Transferor Company No.6 is situated at 16/2, Residency Road, Bangalore-560025.

The main objects of the Transferor Company No.6 is to carry on the business of all or any of the business as manufacturers, traders, exporter, stockists, distributors, consignors, consignees, agents, factors or and/ or otherwise deal in yarn of all kinds and description made out of any fibrous material(s) hosieries, manmade fibres, viscose and viscose blended fibre, readymade garments etc., The copy of Memorandum and Articles of Association of the Transferor Company No.6 shown as **Annexure-I6.**

The latest authorised share capital of the Applicant Company No.6/Transferor Company No.6 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The issued, subscribed and paid-up capital of the Transferor Company No.6 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The Audited balance sheet as on 31st March, 2016 is shown as **Annexure-J6**.

It is further stated that Applicant Company No.7/ Transferor Company No.7 was incorporated on 7th March, 2003 under the name and style of Reflexion Trading Private Limited. The Registered office of the Transferor Company No.7 is situated at 16/2, Residency Road, Bangalore-560025.

The main objects of the Transferor Company No.7 is to carry on the business of all or any of the business as manufacturers, traders, exporter, stockists, distributors, consignors, consignees, agents, factors or and/ or otherwise deal in yarn of all kinds and description made out of any fibrous material(s) hosieries, manmade fibres, viscose and viscose blended fibre, readymade garments etc., The copy of Memorandum and Articles of Association of the Transferor Company No.7 shown as **Annexure-I7.**

The latest authorised share capital of the Applicant Company No.7/Transferor Company No.7 is Rs.1,00,000/- divided into 10,000 Equity Shares of Rs.10/- each. The issued, subscribed and paid-up capital of the Transferor Company No.1 is Rs.1,00,000/- divided into 10,000 Equity Shares of Rs.10/- each. The Audited balance sheet as on 31st March, 2016 is shown as **Annexure-J7**.

It is further stated that Applicant Company No.8/ Transferor Company No.8 was incorporated on 15th April, 2004 under the name and style of Rishikesh Apparels Private limited. The Registered office of the Transferor Company No.8 is situated at 16/2, Residency Road, Bangalore-560025.

The main objects of the Transferor Company No.8 is to carry on the business of all or any of the business as manufacturers, traders, exporter, stockists, distributors, consignors, consignees, agents, factors or and/ or otherwise deal in yarn of all kinds and description made out of any fibrous material(s) hosieries, manmade fibres, viscose and viscose blended fibre, readymade garments etc., The copy of Memorandum and Articles of Association of the Transferor Company No.8 shown as **Annexure-I8.**

The latest authorised share capital of the Applicant Company No.8/Transferor Company No.8 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The issued, subscribed and paid-up capital of the Transferor Company No.8 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The Audited balance sheet as on 31st March, 2016 is shown as **Annexure-J8**.

It is further stated that Applicant Company No.9/ Transferor Company No.9 was incorporated on 18th June, 2004 under the name and style of Seven Hills Clothing Private Limited. The Registered office of the Transferor Company No.9 is situated at 16/2, Residency Road, Bangalore-560025.

The main objects of the Transferor Company No.9 is to carry on the business of all or any of the business as manufacturers, traders, exporter, stockists, distributors, consignors, consignees, agents, factors or and/ or otherwise deal in yarn of all kinds and description made out of any fibrous material(s) hosieries, manmade fibres, viscose and viscose blended fibre, readymade garments etc., The copy of Memorandum and Articles of Association of the Transferor Company No.9 shown as **Annexure-I9.**

The latest authorised share capital of the Applicant Company No.9/Transferor Company No.9 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The issued, subscribed and paid-up capital of the Transferor Company No.9 is Rs.2,00,000/- divided into 20,000 Equity Shares of Rs.10/- each. The Audited balance sheet as on 31st March, 2016 is shown as **Annexure-J9**.

It is further stated that Applicant Company No.10/ Transferee Company was incorporated on 1st March, 2004 under the name and style of Gokaldas Exports Limited. The Registered office of the Transferee Company is situated at 16/2, Residency Road, Bangalore-560025.

The main objects of the Transferee Company is to carry on the business of all or any of the business as manufacturers, traders, exporter, stockists, distributors, consignors, consignees, agents, factors or and/ or otherwise deal in yarn of all kinds and description made out of any fibrous material(s) hosieries, manmade fibres, viscose and viscose blended fibre, readymade garments etc., The copy of Memorandum and Articles of Association of the Transferee Company shown as **Annexure-L6`.**

The latest authorised capital of the Transferee Company is Rs.20,00,00,000/- divided into 4,00,00,000 equity shares of Rs.5/- each. The issued, subscribed and paid-up capital is Rs.17,46,38,310/- divided into 3,49,27,662 equity shares of Rs.5/- each. The Audited balance sheet as on 31st March, 2016 shown as **Annexure-L7.**

It is further stated that, the Board of Directors of the Transferor Companies No.1,2,3,4,5,6,7,8,9 and Transferee Company have approved and adopted a Scheme of Amalgamation at their respective meetings held on 16th September, 2016 and 30th January, 2017 by virtue of which Deejay Trading Private Limited (Applicant Company No./Transferor Company No.1), Glamourwear Apparels Private Limited (Applicant Company No.2/Transferor Company No.2), Madhin Trading Private Limited (Applicant Company No.3/Transferor Company No.3), Magenta Trading Private Limited (Applicant company No.4/Transferor Company No.4), Rafter Trading Private Limited (Applicant Company No.5/Transferor Company No.5), Rajdin Apparels Private Limited (Applicant Company No.6/Transferor Company No.6), Reflexion Trading Private Limited (Applicant Company No.7/Transferor company No.7), Rishikesh Apparels Private Limited (Applicant Company No.8/Transferor Company No.8), Seven Hills Clothing Private Limited (Applicant Company No.9/Transferor company No.9) are proposed to be merged with Gokaldas Exports Limited (Applicant Company No.10/Transferee Company) subject to confirmation. Copies of the Board Resolution of Transferor Companies No.1,2,3,4,5,6,7,8,9 and Transferee Company dated 16th September, 2016 and 30th January, 2017approving and adopting the Scheme of Amalgamation are shown as **Annexure-D1 to D9 and E1 to E9, L2 and L3 respectively.**

It is further averred in the scheme that the Board of Directors of the Transferor Companies No.1,2,3,4,5,6,7,8,9 and Transferee Company are of the opinion that the amalgamation would result in following benefits:

1. The Transferee Company and the Transferor Companies are into the business of manufacturing and trading in textiles, leather and other apparel products. With the objective of amalgamating the resources of all the companies, the Company can achieve effective control, increased efficiency, cost efficiency, cost effectiveness and increased customer recognition.
2. The amalgamation would consolidate the business operations, undertaking, assets, liabilities etc., of the transferor companies into the Transferee Company, under a single centralized systems of management which shall result in the management being able to exercise greater control over the operations of the companies.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.1/ Transferor Company No.1 has certified that there are 7 shareholders as on 31st December, 2017 of the Applicant Company No.1/Transferor Company No.1 shown as **Annexure-F1**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.2/ Transferor Company No.2 has certified that there are 7 shareholders as on 31st December, 2017 of the Applicant Company No.2/Transferor Company No.2 shown as **Annexure-F2**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.3/ Transferor Company No.3 has certified that there are 7 shareholders as on 31st December, 2017 of the Applicant Company No.3/Transferor Company No.3 shown as **Annexure-F3**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.4/ Transferor Company No.4 has certified that there are 7 shareholders as on 31st December, 2017 of the Applicant Company No.4/Transferor Company No.4 shown as **Annexure-F4**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.5/ Transferor Company No.5 has certified that there are 7 shareholders as on 31st December, 2017 of the Applicant Company No.5/Transferor Company No.5 shown as **Annexure-F5**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.6/ Transferor Company No.6 has certified that there are 7 shareholders as on 31st December, 2017 of the Applicant Company No.6/Transferor Company No.6 shown as **Annexure-F6**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.7/ Transferor Company No.7 has certified that there are 7 shareholders as on 31st December, 2017 of the Applicant Company No.7/Transferor Company No.7 shown as **Annexure-F7**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.8/ Transferor Company No.8 has certified that there are 7 shareholders as on 31st December, 2017 of the Applicant Company No.8/Transferor Company No.8 shown as **Annexure-F8**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.9/ Transferor Company

No.9 has certified that there are 7 shareholders as on 31st December, 2017 of the Applicant Company No.9/Transferor Company No.9 shown as **Annexure-F9**.

It is further stated that there are no Secured Creditors in the Applicant Company No.1/Transferor Company No.1 as certified by the Chartered Accountant shown as **Annexure-G1**.

It is further stated that there are no Secured Creditors in the Applicant Company No.2/Transferor Company No.2 as certified by the Chartered Accountant shown as **Annexure-G2**.

It is further stated that there are no Secured Creditors in the Applicant Company No.3/Transferor Company No.3 as certified by the Chartered Accountant shown as **Annexure-G3**.

It is further stated that there are no Secured Creditors in the Applicant Company No.4/Transferor Company No.4 as certified by the Chartered Accountant shown as **Annexure-G4**.

It is further stated that there are no Secured Creditors in the Applicant Company No.5/Transferor Company No.5 as certified by the Chartered Accountant shown as **Annexure-G5**.

It is further stated that there are no Secured Creditors in the Applicant Company No.6/Transferor Company No.6 as certified by the Chartered Accountant shown as **Annexure-G6**.

It is further stated that there are no Secured Creditors in the Applicant Company No.7/Transferor Company No.7 as certified by the Chartered Accountant shown as **Annexure-G7**.

It is further stated that there are no Secured Creditors in the Applicant Company No.8/Transferor Company No.8 as certified by the Chartered Accountant shown as **Annexure-G8**.

It is further stated that there are no Secured Creditors in the Applicant Company No.9/Transferor Company No.9 as certified by the Chartered Accountant shown as **Annexure-G9**.

It is further stated that there are two Secured Creditors in the Applicant Company No.10/Transferee Company as certified by the Chartered Accountant shown as **Annexure-L9**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.1/Transferor Company No.1 has certified that there are two Unsecured Creditors as on 31st December, 2016 of the Applicant Company No.1/Transferor Company No.1 shown as **Annexure-H1**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.2/Transferor Company No.2 has certified that there are two Unsecured Creditors as on 31st December, 2016 of the Applicant Company No.2/Transferor Company No.2 shown as **Annexure-H2**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.3/Transferor Company No.3 has certified that there are five Unsecured Creditors as on 31st December, 2016 of the Applicant Company No.3/Transferor Company No.3 shown as **Annexure-H3**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.4/Transferor Company No.4 has certified that there are nine Unsecured Creditors as on 31st December, 2016 of the Applicant Company No.4/Transferor Company No.4 shown as **Annexure-H4**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.5/Transferor Company No.5 has certified that there are twelve Unsecured Creditors as on 31st December, 2016 of the Applicant Company No.5/Transferor Company No.5 shown as **Annexure-H5**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.6/Transferor Company No.6 has certified that there are twelve Unsecured Creditors as on 31st December, 2016 of the Applicant Company No.6/Transferor Company No.6 shown as **Annexure-H6**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.7/Transferor Company No.7 has certified that there are twelve Unsecured Creditors as on 31st December, 2016 of the Applicant Company No.7/Transferor Company No.7 shown as **Annexure-H7**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.8/Transferor Company No.8 has certified that there are eight Unsecured Creditors as on 31st December, 2016 of the Applicant Company No.8/Transferor Company No.8 shown as **Annexure-H8**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.9/Transferor Company No.9 has certified that there are five Unsecured Creditors as on 31st December, 2016 of the Applicant Company No.9/Transferor Company No.9 shown as **Annexure-H9**.

It is further stated that the Chartered Accountant after verification of the books of accounts, other records and documents of the Applicant Company No.10/Transferee Company No.10 has certified that there are 477 Unsecured Creditors as on 31st December, 2016 of the Applicant Company No.10/Transferee Company No.10 shown as **Annexure-L10**.

We have seen the Consent Affidavits filed by the Seven Equity shareholders of Applicant Company no.1/Transferor Company no.1 i.e., (i) Gokaldas Exports Ltd, holding 19994 equity shares, constituting 99.97% of the paid-up capital,(ii) Mr.P.Rambabu, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sathyamurthy A, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(iv) Mr.P.Vishwanath, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sunil Mon Nair. Nominee of Gokaldas Exports Ltd, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vi)Mr.M.P.Vijayan, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital. (vii)Ms.Ramya.K Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital.

We have seen the Consent Affidavits filed by the Seven Equity shareholders of Applicant Company no.2/Transferor Company no.2 i.e., (i) Gokaldas Exports Ltd, holding 19994 equity shares, constituting 99.97% of the paid-up capital,(ii) Mr.P.Rambabu, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sathyamurthy A, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(iv) Mr.P.Vishwanath, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sunil Mon Nair, Nominee of Gokaldas Exports Ltd, Nominee of Gokaldas Exports Ltd holding 1 equity share,

constituting 0.005% of the paid-up capital, (vi)Mr.M.P.Vijayan, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vii)Ms.Ramya.K Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital.

We have seen the Consent Affidavits filed by the Seven Equity shareholders of Applicant Company no.3/Transferor Company no.3 i.e., (i) Gokaldas Exports Ltd, holding 19994 equity shares, constituting 99.97% of the paid-up capital,(ii) Mr.P.Rambabu, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sathyamurthy A, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(iv) Mr.P.Vishwanath, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sunil Mon Nair, Nominee of Gokaldas Exports Ltd, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vi)Mr.M.P.Vijayan, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vii)Ms.Ramya.K Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital.

We have seen the Consent Affidavits filed by the Seven Equity shareholders of Applicant Company no.4/Transferor Company no.4 i.e., (i) Gokaldas Exports Ltd, holding 19994 equity shares, constituting 99.97% of the paid-up capital,(ii) Mr.P.Rambabu, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sathyamurthy A, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(iv) Mr.P.Vishwanath, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sunil Mon Nair, Nominee of Gokaldas Exports Ltd, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vi)Mr.M.P.Vijayan, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vii)Ms.Ramya.K Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital.

We have seen the Consent Affidavits filed by the Seven Equity shareholders of Applicant Company no.5/Transferor Company no.5 i.e., (i) Gokaldas Exports Ltd, holding 19994 equity shares, constituting 99.97% of the paid-up capital,(ii) Mr.P.Rambabu, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v)

Mr.Sathyamurthy A, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(iv) Mr.P.Vishwanath, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sunil Mon Nair, Nominee of Gokaldas Exports Ltd, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vi)Mr.M.P.Vijayan, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vii)Ms.Ramya.K Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital.

We have seen the Consent Affidavits filed by the Seven Equity shareholders of Applicant Company no.6/Transferor Company no.6 i.e., (i) Gokaldas Exports Ltd, holding 19994 equity shares, constituting 99.97% of the paid-up capital,(ii) Mr.P.Rambabu, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sathyamurthy A, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(iv) Mr.P.Vishwanath, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sunil Mon Nair, Nominee of Gokaldas Exports Ltd, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vi)Mr.M.P.Vijayan, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vii)Ms.Ramya.K Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital.

We have seen the Consent Affidavits filed by the Seven Equity shareholders of Applicant Company no.7/Transferor Company no.7 i.e., (i) Gokaldas Exports Ltd, holding 9994 equity shares, constituting 99.97% of the paid-up capital,(ii) Mr.P.Rambabu, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sathyamurthy A, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(iv) Mr.P.Vishwanath, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sunil Mon Nair, Nominee of Gokaldas Exports Ltd, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vi)Mr.M.P.Vijayan, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vii)Ms.Ramya.K Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital.

We have seen the Consent Affidavits filed by the Seven Equity shareholders of Applicant Company no.8/Transferor Company no.8 i.e., (i) Gokaldas Exports Ltd, holding 19994 equity shares, constituting 99.97% of the paid-up capital,(ii) Mr.P.Rambabu, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sathyamurthy A, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(iv) Mr.P.Vishwanath, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sunil Mon Nair, Nominee of Gokaldas Exports Ltd, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vi)Mr.M.P.Vijayan, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vii)Ms.Ramya.K Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital.

We have seen the consent affidavits filed by the Seven Equity shareholders of Applicant Company no.9/Transferor Company no.9 i.e., (i) Gokaldas Exports Ltd, holding 19994 equity shares, constituting 99.97% of the paid-up capital,(ii) Mr.P.Rambabu, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sathyamurthy A, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(iv) Mr.P.Vishwanath, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital,(v) Mr.Sunil Mon Nair, Nominee of Gokaldas Exports Ltd, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vi)Mr.M.P.Vijayan, Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital, (vii)Ms.Ramya.K Nominee of Gokaldas Exports Ltd holding 1 equity share, constituting 0.005% of the paid-up capital.

The Applicant Companies no.1,2,3,4,5,6,7,8,9 is seeking an order to dispense with convening of the meeting of Secured Creditors on the ground that there are no Secured Creditors in the Applicant Companies No.1,2,3,4,5,6,7,8,9. The Chartered Accountant certified that there are no Secured Creditors shown as **Annexure-G1 to G9.**

There are two Unsecured Creditors as certified by the Chartered Accountant in the Applicant Company no.1/Transferor Company No.1. The Certificate of Chartered Accountant is shown as **Annexure-H1**. It is stated that, the value of amounts due to unsecured creditors of the Applicant Company No.1/Transferor Company No.1 is Rs.38,608/- and 93.2% of the

unsecured creditors representing value of Rs.36,000/- have given their consent to the Scheme by way of affidavit. We have seen the consent affidavits given by the Unsecured Creditors shown as **Annexure-01.**

There are two Unsecured Creditors as certified by the Chartered Accountant in the Applicant Company no.2/Transferor Company No.2. The Certificate of Chartered Accountant is shown as **Annexure-H2**. It is stated that, the value of amounts due to unsecured creditors of the Applicant Company No.2/Transferor Company No.2 is Rs.44,250/- and 97.6% of the unsecured creditors representing value of Rs.43,200/- have given their consent to the Scheme by way of affidavit. We have seen the consent affidavits given by the Unsecured Creditors shown as **Annexure-02.**

There are five Unsecured Creditors as certified by the Chartered Accountant in the Applicant Company no.3/Transferor Company No.3. The Certificate of Chartered Accountant is shown as **Annexure-H3**. It is stated that, the value of amounts due to unsecured creditors of the Applicant Company No.3/Transferor Company No.3 is Rs.1,44,614/- and 92.36% of the unsecured creditors representing value of Rs.1,33,573/- have given their consent to the Scheme by way of affidavit. We have seen the consent affidavits given by the Unsecured Creditors shown as **Annexure-03.**

There are nine Unsecured Creditors as certified by the Chartered Accountant in the Applicant Company no.4/Transferor Company No.4. The Certificate of Chartered Accountant is shown as **Annexure-H4**. It is stated that, the value of amounts due to unsecured creditors of the Applicant Company No.4/Transferor Company No.4 is Rs.2,50,580/- and 99.5% of the unsecured creditors representing value of Rs.2,49,577/- have given their consent to the Scheme by way of affidavit. We have seen the consent affidavits given by the Unsecured Creditors shown as **Annexure-04.**

There are twelve Unsecured Creditors as certified by the Chartered Accountant in the Applicant Company no.5/Transferor Company No.5. The Certificate of Chartered Accountant is shown as **Annexure-H5**. It is stated that, the value of amounts due to unsecured creditors of the Applicant Company No.5/Transferor Company No.5 is Rs.9,77,103/- and 90.52% of the unsecured creditors representing value of Rs.8,84,501/- have given their consent to the Scheme by way of affidavit. We have seen the consent affidavits given by the Unsecured Creditors shown as **Annexure-05.**

There are twelve Unsecured Creditors as certified by the Chartered Accountant in the Applicant Company no.6/Transferor Company No.6. The Certificate of Chartered Accountant is shown as **Annexure-H6**. It is stated that, the value of amounts due to unsecured creditors of the Applicant Company No.6/Transferor Company No.6 is Rs.24,30,017/- and 92.9% of the unsecured creditors representing value of Rs.22,57,967/- have given their consent to the Scheme by way of affidavit. We have seen the consent affidavits given by the Unsecured Creditors shown as **Annexure-06.**

There are twelve Unsecured Creditors as certified by the Chartered Accountant in the Applicant Company no.7/Transferor Company No.7. The Certificate of Chartered Accountant is shown as **Annexure-H7**. It is stated that, the value of amounts due to unsecured creditors of the Applicant Company No.7/Transferor Company No.7 is Rs.13,76,599/- and 96.37% of the unsecured creditors representing value of Rs.13,26,710/- have given their consent to the Scheme by way of affidavit. We have seen the consent affidavits given by the Unsecured Creditors shown as **Annexure-07.**

There are eight Unsecured Creditors as certified by the Chartered Accountant in the Applicant Company no.8/Transferor Company No.8. The Certificate of Chartered Accountant is shown as **Annexure-H8.** It is stated that, the value of amounts due to unsecured creditors of the Applicant Company No.8/Transferor Company No.8 is Rs.3,71,286/- and 100% of the unsecured creditors representing value of Rs.3,71,286/- have given their consent to the Scheme by way of affidavit. We have seen the consent affidavits given by the Unsecured Creditors shown as **Annexure-08.**

There are five Unsecured Creditors as certified by the Chartered Accountant in the Applicant Company no.9/Transferor Company No.9. The Certificate of Chartered Accountant is shown as **Annexure-H9**. It is stated that, the value of amounts due to unsecured creditors of the Applicant Company No.9/Transferor Company No.9 is Rs.2,20,755/- and 90.2% of the unsecured creditors representing value of Rs.1,99,197/- have given their consent to the Scheme by way of affidavit. We have seen the consent affidavits given by the Unsecured Creditors shown as **Annexure-09.**

There are 477 Unsecured Creditors as certified by the Chartered Accountant in the Applicant Company no.10/Transferee Company. The Certificate of Chartered Accountant is shown as **Annexure-L10**. It is stated that, the value of amounts due to unsecured creditors of the Applicant Company No.10/Transferee Company is Rs.96,46,01,202/- and 90.2% of the

unsecured creditors representing value of Rs.87,08,62,471/- have given their consent to the Scheme by way of affidavit. We have seen the consent affidavits given by the Unsecured Creditors shown as **Annexure-L11-L130.**

We have heard the Counsel appearing for the Applicant Companies. The Application filed by the Applicant Companies to dispense with convening of meeting of shareholders and creditors of the Applicant Company No 1, 2,3,4,5,6,7,8,9, dispense with convening of meeting of unsecured creditors of Applicant Company No.10 and convening the meeting of Shareholders and Secured Creditors of Applicant Company No.10 for approving the scheme of Amalgamation, where under Deejay Trading Private Limited (Applicant Company No./Transferor Company No.1), Glamourwear Apparels Private Limited (Applicant Company No.2/Transferor Company No.2), Madhin Trading Private Limited (Applicant Company No.3/Transferor Company No.3), Magenta Trading Private Limited (Applicant company No.4/Transferor Company No.4), Rafter Trading Private Limited (Applicant Company No.5/Transferor Company No.5), Rajdin Apparels Private Limited (Applicant Company No.6/Transferor Company No.6), Reflexion Trading Private Limited (Applicant Company No.7/Transferor company No.7), Rishikesh Apparels Private Limited (Applicant Company No.8/Transferor Company No.8), Seven Hills Clothing Private Limited (Applicant Company No.9/Transferor company No.9) are proposed to be merged with Gokaldas Exports Limited (Applicant Company No.10/Transferee Company)in terms of Scheme of Amalgamation shown as **Annexure-A.**

The PCS for Applicants filed additional memo contending that SEBI Circular dated 30.11.2015, the Company can seek approval of the members to the scheme through postal ballot & e-voting. Copy of the SEBI Circular is shown as Annexure 1 to additional memo dated 12th September, 2017. We have seen the circular, this circular will come into effect from 1st December, 2015. Clause 9 of the SEBI Circular deals with postal ballot & e-voting in specified cases.

The Learned PCS further relied on SEBI Circular dated 10.3.2017 marked as Annexure 2 to the additional memo and relied on Clause 7.

PCS further contended that applicants 1 to 9 Companies are wholly-owned subsidiaries of Applicant Company no.10/ Transferee Company and that the scheme does not affect the rights of members or creditors of the Transferee Company. Contention of PCS is that postal

ballot and e-voting will enable all the members to exercise their assent/dissent to the scheme. In this connection PCS has further cited the following decisions:

i) Order dated 13.07.2017 of Hon'ble NCLT, Chennai Bench in CP/52/CAA/2017 and CP/53/CAA/2017 of Amrutanjan Pharmaessence Private Limited (Transferor Company) with Amrutanjan Health Care Limited (Transferee Company).

ii) Order dated 4.09.2017 of Hon'ble NCLT, Chennai Bench in CP/103/CAA/2017 CA/27&28/CAA 2016 in Sara Elgi Arteriors Limited (Transferor Company 1), Elgi Building Products Limited (Transferor Company 2) with Super Spinning Mills Limited (Transferee Company).

iii) Order dated 4.9.2017 of Hon'ble NCLT, Mumbai Bench in Company Scheme Application No.243 of 2017 of Windermere Properties Private Limited, Haddock Properties Private Limited, Grandeur Properties Private Limited, Winchester Properties Private Limited and Pentagram Properties Private Limited (All Transferor Companies) with Housing Development Finance Corporation Limited (Transferee Company).

These decisions of respective Tribunals are not applicable to this case. Here Transferee Company is also a party to the Application. It is listed company. Shareholders are numerous. The Shareholders of the Transferor Companies are not the only shareholders of the Transferee Company. Therefore, meeting is to be conducted. However, members can present in the meeting either by person or by proxy or they may give their assent or dissent by postal ballot or e-voting. The Chairman of the meeting shall make necessary arrangement to enable the members to give assent/dissent to the scheme through postal ballot or through e-voting.

After hearing the PCS and after perusing the documents filed, we pass the following

ORDER

The meeting of the Equity Shareholders of the Applicant Company No.10 be convened and held at J.N.Tata Auditorium, National Science Symposium Complex, Near Indian Institute of Science, Sir C.V. Raman Avenue, Malleshwaram 18th Cross, Bengaluru-560012, on **Monday the 27th November, 2017 at 2:30 P.M.** for the purpose of considering and, if thought fit, approving with or without modification(s) the proposed scheme of amalgamation of Deejay Trading Private Limited (Applicant Company No./Transferor Company No.1), Glamourwear

Apparels Private Limited (Applicant Company No.2/Transferor Company No.2), Madhin Trading Private Limited (Applicant Company No.3/Transferor Company No.3), Magenta Trading Private Limited (Applicant company No.4/Transferor Company No.4), Rafter Trading Private Limited (Applicant Company No.5/Transferor Company No.5), Rajdin Apparels Private Limited (Applicant Company No.6/Transferor Company No.6), Reflexion Trading Private Limited (Applicant Company No.7/Transferor company No.7), Rishikesh Apparels Private Limited (Applicant Company No.8/Transferor Company No.8), Seven Hills Clothing Private Limited (Applicant Company No.9/Transferor company No.9) to be merged with Gokaldas Exports Limited (Applicant Company No.10/Transferee Company)

Mr.Ramababu, Vice-Chairman and Managing Director, Gokaldas Exports Limited as proposed by the Applicant Company No.10 is appointed as Chairperson and Mr. Nagendra D Rao, Practising Company Secretary as Scrutinizer for the Meeting of Equity Shareholders. The remuneration of Chairperson and Scrutinizer is fixed at Rs.20,000/- and Rs.10,000/- respectively for convening the meeting of Equity Shareholders.

The meeting of the **Secured Creditors** of the Applicant Company No.10 be convened and held at **#16/2, Residency Road, Bengaluru-560025 on Thursday the 23rd November, 2017 at 2:30 P.M** for the purpose of considering and, if thought fit, approving with or without modification(s) the proposed scheme of amalgamation of Deejay Trading Private Limited (Applicant Company No./Transferor Company No.1), Glamourwear Apparels Private Limited (Applicant Company No.2/Transferor Company No.2), Madhin Trading Private Limited (Applicant Company No.3/Transferor Company No.3), Magenta Trading Private Limited (Applicant company No.4/Transferor Company No.4), Rafter Trading Private Limited (Applicant Company No.5/Transferor Company No.5), Rajdin Apparels Private Limited (Applicant Company No.6/Transferor Company No.6), Reflexion Trading Private Limited (Applicant Company No.7/Transferor company No.7), Rishikesh Apparels Private Limited (Applicant Company No.8/Transferor Company No.8), Seven Hills Clothing Private Limited (Applicant Company No.9/Transferor company No.9) to be merged with Gokaldas Exports Limited (Applicant Company No.10/Transferee Company)

Mr.Ramababu, Vice-Chairman and Managing Director, Gokaldas Exports Limited as proposed by the Applicant Company No.10 is appointed as Chairperson and Mr. Nagendra D Rao, Practising Company Secretary as Scrutinizer for the Meeting of Secured Creditors. The

remuneration of Chairperson and Scrutinizer is fixed at Rs.20,000/- and Rs.10,000/- respectively for convening the meeting of Secured Creditors.

The quorum for the Meeting of Equity Shareholders is thirty.

The quorum for the Meeting of Secured Creditors is two.

The Notice of the Meeting of Equity Shareholders and Secured Creditors shall be published in an English Daily "Financial Express" and in Kannada Daily "Prajavani".

The Applicant Company No.10 or its authorized signatory is directed to issue notice(s) to Equity Shareholders and Secured Creditors by Registered or Speed Post; or Courier; or Air Mail; or email; or hand delivery to their last known address at least 30 clear days before the said meeting of the Equity Shareholders and Secured Creditors as per Form No.CAA2 (Rule 6) of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 ensuing convening the said Equity Shareholders and Secured Creditors Meeting at the place, day, date and time, along with a copy of scheme of amalgamation, a copy of Explanatory Statement, pursuant to be sent under the Section 230 of the Companies Act, 2013 and form of Proxy as per Form No. MGT-11 (Rule 19) of the Companies (Management and Administration) Rules, 2014.

The Applicant Company is directed at least 30 clear days before the Meeting of the Equity Shareholders and Secured Creditors of the Applicant Company No.10 to be held as aforesaid, a notice convening the said meeting, at the place, date and time aforesaid and stating that copies of the Scheme of Amalgamation and the statement required to be furnished pursuant to Section 230 of the Companies Act, 2013 and that the form of proxy can be obtained free of charge at the Registered Office of the Applicant Company No.10 as aforesaid.

The Applicant Company No.10 to serve the notice upon the Regional Director, South-East Region, Ministry of Corporate Affairs, Hyderabad pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 if no response is received by the Tribunal from Regional Director within 30 days of the date of receipt of the notice it will be presumed that Regional Director and/or Central Government has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016.

The Applicant Company No.10 to serve the notice upon the Registrar of Companies, Karnataka pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the

Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 if no response is received by the Tribunal from Registrar of Companies, Karnataka within 30 days of the date of receipt of the notice it will be presumed that Registrar of Companies, Karnataka has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016.

The Applicant Company No.10 to serve the notice upon the Income Tax Authority, within whose jurisdiction that Applicant Company's Assessment are made, pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 if no response is received by the Tribunal from Income Tax Authority within 30 days of the date of receipt of the notice it will be presumed that Income Tax Authority has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016.

The Applicant Company No.10 to serve the notice upon the Reserve Bank of India, if applicable pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 if no response is received by the Tribunal from Reserve Bank of India within 30 days of the date of receipt of the notice it will be presumed that Reserve Bank of India has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016.

The Applicant Company No.10 to serve the notice upon the Securities Exchange Board of India pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 if no response is received by the Tribunal from Securities Exchange Board of India within 30 days of the date of receipt of the notice it will be presumed that Securities Exchange Board of India has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016.

The Applicant Company No.10 to serve the notice upon the Official Liquidator pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 if no response is received by the Tribunal from Official Liquidator within 30 days of the date of receipt of the notice it will be presumed that Official Liquidator has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016.

The Applicant Company No.10 to serve the notice upon the Competition Commission of India pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 if no response is received by the Tribunal from Competition Commission of India within 30 days of the date of receipt of the notice it will be presumed that Competition Commission of India has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016.

The Applicant Company No.10 to serve the notice upon the other sectoral regulators or authorities, all stock exchanges in which the Company is listed if any, pursuant to Section 230(5) of the Companies Act, 2013 as per Rule 8 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 if no response is received by the Tribunal from other sectoral regulators or authorities, stock exchange within 30 days of the date of receipt of the notice it will be presumed that the other sectoral regulators or authorities, stock exchange has no objection to the proposed Scheme as per Rule 8 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016.

The said Chairperson shall have all powers under the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the conduct of the meeting(s), including for deciding procedural questions that may arise before or at any adjournment thereof or any other matter including an amendment to the scheme or resolution, if any, proposed at the meeting by any person(s).

The voting shall be in person or postal ballots or e-voting or by proxy or authorised representative in case be permitted, provided that the proxy in the Form No. MGT-11 authorization duly signed by the person entitled to attend and vote at the meeting, is to be filed with the Applicant Company at its Registered office, not later than, forty Eight hours before the aforesaid meeting in accordance with Rule 10 of the Companies (Compromises, Arrangements and Amalgamation) Rules, 2016.

The said Chairperson to file affidavit not less than seven days before the day fixed for holding of the meeting and do report to this tribunal that the direction regarding convening and issuance of notice(s) to all the necessary parties have been duly complied with in conformity with the relevant Provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, Amalgamations) Rules, 2016.

The Chairman shall report the conclusion of the aforesaid meeting as per the Rule 14 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

In the result, the application is allowed and holding of meeting of the Equity Shareholders and Unsecured Creditors of Applicant Companies 1 to 9 and Unsecured Creditors of Applicant Company No.10 is dispensed with. In any eventuality when the Applicant Companies approaches this Tribunal for seeking approval of the scheme it would be open for any person who are interested in the Scheme of Amalgamation to put forth their contentions before the Tribunal.

25/9/17

(ASHOK KUMAR MISHRA)
MEMBER, TECHNICAL

25/9/17

(RATAKONDA MURALI)
MEMBER, JUDICIAL